

Court No. - 1

Case :- WRIT - C No. - 4604 of 2020

Petitioner :- Mahendra Yadav

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Santosh Kumar Singh

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

Heard Sri Santosh Kumar Singh, learned counsel for the petitioner, Ms. Maimoona Fatima, learned Advocate holding brief of Sri Mahboob Ahmad, learned counsel for the Power Corporation and learned Standing Counsel for the State.

Learned counsel for the petitioner has come up before this Court disputing the bill, which is in question.

Ms. Maimoona Fatima learned counsel appearing for the Electricity Department has raised preliminary objection *qua* maintainability of writ petition on the ground that the petitioner has efficacious alternative remedy to file representation before the appropriate authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005 and against the order passed thereunder, the petitioner has further remedy to approach UPERC (Consumer Grievance Redressal Forum & Electricity Ombudsman) Regulations, 2007.

In view of the above, we dispose of the writ petition with liberty to the petitioner to approach the competent authority according to procedure prescribed and further provide that in the event he applies for under Clause 6.5 of the U.P. Electricity Supply Code, 2005 against the disputed bill within two weeks' from today along with certified copy of this order the same shall be considered in accordance with law and shall be disposed of within a further period of six weeks.

Any liability for payment shall be determined according to the final order that will be passed.

Order Date :- 7.2.2020

Sanjeev

(Ajit Kumar,J.) (Ramesh Sinha,J.)